

5 & 6 GEO. 6.

Ministry of Health

Ch. viii.

Provisional Order Confirmation (Caernarvon) Act, 1942.



CHAPTER viii.

An Act to confirm a Provisional Order of the Minister of Health relating to the borough of Caernarvon.

[29th July 1942:]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a Provisional Order which needs confirmation by Parliament :

38 & 39 Vict.
c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force.

Order in
schedule
confirmed.

2. Paragraph (d) of subsection (2) and subsection (4) of section one of the Emergency Powers (Defence) Act 1939 as amended by subsection (2) of section one of the Emergency Powers (Defence) Act 1940 shall have effect as if this Act had been passed before the commencement of the last mentioned Act.

Saving of
Emergency
Powers.
2 & 3 Geo. 6.
c. 62.
3 & 4 Geo. 6.
c. 20.

3. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Caernarvon) Act 1942.

Short title.

Caernarvon
 Order.

SCHEDULE.

BOROUGH OF CAERNARVON.

Provisional Order partially repealing and amending the Carnarvon Waterworks Act 1865 and the Carnarvon Corporation Act 1897.

WHEREAS the Borough of Caernarvon is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council (hereinafter referred to as "the Corporation") are the Urban District Council and the local authority within the meaning of the Public Health Act 1936 and there are in force in the Borough the unrepealed provisions of the Carnarvon Waterworks Act 1865 (hereinafter referred to as "the Act of 1865") as amended by the Carnarvon Order 1920 the Carnarvon Corporation Act 1897 (hereinafter referred to as "the Act of 1897") as amended by the Carnarvon Orders 1918 and 1920 which said Orders were respectively confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1918 and the Ministry of Health Provisional Orders Confirmation (No. 1) Act 1920 and by certain other Orders confirmed by Parliament which do not effect the subject matter of this Order;

And whereas under the provisions of the aforementioned local Acts and Provisional Orders the Corporation of the Borough of Caernarvon carry on a water undertaking and supply water within certain limits;

And whereas the Corporation have applied to the Minister of Health (hereinafter referred to as "the Minister") for the issue of a Provisional Order partially to repeal and amend the local Acts in the manner following:

Now therefore the Minister in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

PART I.

SHORT TITLE AND DATE OF COMMENCEMENT.

Short title and commencement. 1. This Order may be cited as the Caernarvon Order 1942 and shall come into operation on the date of the Act of Parliament confirming it.

PART II.

WATER RATES AND CHARGES.

Liability for and recovery of water rates. 2.—(1) Water rates shall be payable and recoverable in accordance with the provisions of this section and not otherwise.

(2) Except where an owner of premises who is not himself the occupier thereof is liable by or under some express enactment or by agreement with the Corporation to pay the water rates for a supply

of water to those premises the water rates shall be payable by the occupier of the premises.

(3) The water rates payable by any person may after a demand therefor be recovered from him by the Corporation either summarily as a civil debt or as a simple contract debt in any court of competent jurisdiction and subject as hereinafter provided and to the provisions of the next succeeding subsection where a person fails to pay within seven days after a demand therefor any instalment of a water rate payable by him in respect of any premises the Corporation may cut off the supply of water to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the instalment due :

Provided that if before the expiration of the said seven days notice in writing is given to them that there is a dispute as to the amount due in respect of the water rate or as to the liability to pay the rate they shall not cut off the supply of water until the dispute has on the application of either party been settled by a court of summary jurisdiction.

(4) Where at the date when an instalment of a water rate in respect of any premises becomes due the owner of the premises is liable by or under some express enactment or by agreement with the Corporation to pay the water rates for a supply of water to those premises and is not himself the occupier thereof the Corporation shall not cut off the supply of water to the premises for a failure by him to pay that instalment but that instalment without prejudice to the right of the Corporation to enforce payment thereof by him may be recovered by them either from the owner for the time being or subject as hereinafter provided from the occupier for the time being of the premises in the manner in which water rates are recoverable :

Provided that where the occupier of the premises is not the owner thereof—

(a) proceedings shall not be commenced under this subsection against the occupier until notice has been given to him requiring him to pay the amount due out of any rent which is then due or which may thereafter become due from him and he has failed to comply with the notice ; and

(b) no greater sum shall be recovered at any one time from the occupier than the amount of rent which is owing by him or which has accrued since such notice as aforesaid was given to him ; and

(c) if the occupier as between himself and the owner of the premises is not liable to pay the water rates he shall be entitled to deduct from the rent payable by him any sum paid by him in compliance with the notice or so recovered from him.

(5) If any water supply is cut off by the Corporation in contravention of the provisions of this section they shall be liable on summary conviction to a fine not exceeding five pounds for each day during which the water remains cut off.

(6) In this section the expression "water rate" includes any additional charge payable to the Corporation in respect of a supply

PART II.

—cont.

Caernarvon
Order.

PART II.
—cont.
Caernarvon
Order.

of water for domestic purposes within the meaning of that expression as used in the enactments relating to the Corporation.

(7) Nothing in this section shall affect any enactment under which the Corporation may be empowered to collect water rates rents or charges together with general rates or to recover water rates rents or charges in the same manner as general rates.

Water rates.

3.—(1) In respect of the supply of water to any premises for domestic purposes the Corporation may charge a water rate which shall be calculated at a rate not exceeding—

(a) in the case of premises not solely used for business trade or manufacturing purposes twelve pounds ten shillings per centum per annum on the net annual value of the premises supplied ; and

(b) in the case of premises used solely for business trade or manufacturing purposes six pounds five shillings per centum per annum on the net annual value of the premises supplied :

Provided that the Corporation may in any case make in respect of the supply a minimum charge of fifteen shillings per annum.

(2) For the purposes of this part of this Order where water supplied to a house within the curtilage of a factory is used solely for the domestic purposes of inhabitants of the house the house shall be deemed separate premises not forming part of the factory.

(3) For the purposes of this part of this Order the net annual value of any premises shall be taken to be that value as appearing in the valuation list in force on the first day of the period of twelve months covered by the rate :

Provided that if that value is not therein stated or if the water rate is chargeable on a part only of any hereditament entered therein the net annual value of the premises supplied shall be taken to be such sum or as the case may be such fairly apportioned part of the net annual value of the whole hereditament as in default of agreement may be determined by a court of summary jurisdiction.

(4) Subject to the provisions of subsection (2) of this section where there is communication otherwise than by a highway between buildings or parts of buildings in the occupation of the same person those buildings or parts of buildings shall if the Corporation so decide be treated for the purpose of charging water rates as one building having a net annual value equal to the aggregate of their net annual values :

Provided that a person aggrieved by a decision of the Corporation under this subsection may appeal to a court of summary jurisdiction.

Power to
make agreed
charges for
domestic
supply.

4.—(1) The Corporation in lieu of charging a water rate may agree with any person requiring a supply of water for domestic purposes to furnish the supply whether by meter or otherwise on such terms and conditions as may be agreed.

(2) Charges payable under this section shall be recoverable in the manner in which water rates are recoverable.

5.—(1) Where water which the Corporation supply for domestic purposes in respect of which they charge a water rate—

(a) is used for watering a garden ; or

(b) is used for horses washing vehicles or other purposes in stables garages or other premises where horses or vehicles are kept ;

the Corporation may in either case if a hosepipe or other similar apparatus is used charge in respect of that use of the water an additional annual sum not exceeding one pound per annum.

(2) Where in either of such cases the water used is drawn from a tap outside a house but no hosepipe or similar apparatus is used the Corporation may charge an additional annual sum not exceeding ten shillings per annum.

(3) Sums charged under the provisions of this section shall be paid in advance either quarterly or half yearly as the Corporation may determine and shall be recoverable in the manner in which water rates are recoverable.

6.—(1) The price to be charged for a supply of water by meter shall not exceed one shilling and sixpence per one thousand gallons.

(2) The Corporation shall not be bound to supply with water otherwise than by meter—

(a) any premises used as a house whereof a part is used by the same occupier for any business trade or manufacturing purpose for which water is required ;

(b) any public institution hospital mental institution nursing home sanatorium school club hostel assembly hall place of public entertainment hotel restaurant or licensed premises within the meaning of that expression as used in the Licensing (Consolidation) Act 1910 ;

(c) any boarding house capable of accommodating twelve or more persons including the persons usually resident therein ; or

(d) any premises which are used solely for business trade or manufacturing purposes and in which a supply of water for domestic purposes only is required.

(3) Where water supplied to a farmhouse is used for farming purposes as well as for domestic purposes the Corporation may require that the water used for farming purposes shall be taken by meter.

(4) In any of the cases mentioned in subsection (2) of this section the water shall be supplied at a charge not exceeding the charge prescribed in subsection (1) of this section subject however to a minimum annual charge equal to the annual amount which would be payable by way of water rate for a supply of water for domestic purposes furnished to the premises in question.

7. Where a person who takes a supply of water for domestic purposes from the Corporation otherwise than by meter desires to use any of the water so supplied—

(a) for operating a water-cooled refrigerating apparatus ; or

PART II.

—cont.

Caernarvon
Order.

Additional charges where water supplied for domestic purposes and paid for by water rate is used for other purposes.

Power to require supply to certain premises and for certain purposes to be taken by meter.

Power to require supplies for refrigerating or water softening

PART II.
—cont.
Caernarvon
Order.

apparatus
&c. to be
taken by
meter.

(b) for operating any apparatus depending while in use upon a supply of continuously running water not being an apparatus used solely for heating the water; or

(c) for cleaning regenerating or supplying motive power to any apparatus used for softening water;

the Corporation may subject as hereinafter provided require that all water so used shall—

(i) be taken by meter at a charge not exceeding the charge prescribed in subsection (1) of section 6 of this Order; or

(ii) be paid for at a reasonable rate to be determined in default of agreement by a court of summary jurisdiction:

Provided that no charge shall be made under this section in respect of a water softening apparatus used within a house for which the supply of water is taken if one such apparatus only is used and if the water softened thereby is used solely for domestic purposes.

Power to
require supply
for hosepipe
to be taken
by meter in
certain cases.

8. Where water which the Corporation supply for domestic purposes and in respect of which they charge a water rate is used by means of a hosepipe or other similar apparatus for watering a garden or for horses washing vehicles or other purposes in stables garages or other premises where horses or vehicles are kept and the consumer takes also a supply of water by meter for purposes other than domestic the Corporation may require that all water used by him by means of the hosepipe or other apparatus shall be taken by meter and paid for at the rate for the time being applicable to his supply by meter for other non-domestic purposes.

Provisions as
to supply to
sheds tents
vans &c.

9.—(1) No person shall be entitled to demand or to continue to receive from the Corporation a supply of water to any habitation to which this section applies unless he has—

(a) agreed with the Corporation to take a supply of water by meter and to pay to them such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the required supply and will cover other standing charges incurred by them in order to meet the possible maximum demand for his habitation and will yield a reasonable return on the cost of the water supplied; and

(b) secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to his possible maximum demand for water.

The annual sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction whose decision shall be final.

(2) The habitations to which this section applies are tents vans or other conveyances whether on wheels or not and sheds or similar structures not being structures to which the building byelaws of the Corporation apply.

Liability to
water rates
where build-
ings supplied
by common
pipe.

10. Where two or more houses or other buildings in the occupation of different persons are supplied with water by a common pipe the owner or occupier of each of them shall be liable to pay the same water rate for the supply as he would have been liable to pay if it had been supplied with water by a separate pipe.

11.—(1) Where a house supplied with water by the Corporation has a net annual value not exceeding thirteen pounds or is let to tenants holding for any period less than a quarter of a year the owner instead of the occupier shall if the Corporation so resolve pay the rate for the supply of water :

PART II.
—cont.
Caernarvon
Order.

Water rates on
certain houses
may be
demanded
from owners.

Provided that in any area within the Corporation's limits of supply in which a higher limit of value than thirteen pounds is in force for the purposes of the proviso to subsection (1) of section eleven of the Rating and Valuation Act 1925 that higher limit shall be deemed to be substituted in this section for thirteen pounds.

(2) An owner of premises to which a resolution of the Corporation under this section applies shall if he pays the amount due by him in respect of a water rate before the expiration of one half of the period in respect of which the rate or instalment of the rate is payable or before such later date as may be specified by the Corporation be entitled to an allowance calculated at the rate of ten per cent.

12.—(1) The Corporation shall make a water rate by fixing in respect of a period of twelve months commencing on either the first day of January the first day of April the first day of July or the first day of October the rate-poundage or as the case may be the scale of rate-poundages by reference to which amounts due under the rate are to be calculated and subject to the provisions of this section any such rate shall be payable in advance by equal quarterly instalments on those dates or if the Corporation so resolve by equal half-yearly instalments on that one of those dates which is the first day of the rate-period and on the first day of the seventh month comprised in that period.

Making and
dates for
payment of
water rates.

(2) A water rate under this section or in force under any enactments relating to the Corporation immediately before the coming into operation of this section shall unless and until a new rate is made continue to operate in respect of each successive period of twelve months.

(3) If and so long as the water rates are payable in advance by half-yearly instalments—

(a) no proceedings shall be commenced for the recovery of any such instalment until the expiration of two months from the first day of the half-year in respect of which it has been demanded ; and

(b) if the person who is or who but for the provision of the last preceding section would be liable to pay the water rate payable in respect of any premises is in occupation of those premises during a portion only of a half-year he or as the case may be the owner of the premises shall be liable to pay so much only of the half-yearly instalment as bears to the whole instalment the same proportion as the number of days within the half-year during which the first-mentioned person is in occupation bears to the number of days in the half-year and if any greater proportion of the instalment has been paid the person by whom it was paid shall be entitled to recover the excess from the Corporation except in so far as he has previously recovered it from an incoming occupier

PART II.

—cont.

Caernarvon
Order.

Provided that nothing in this paragraph shall exempt the owner of any premises from liability in respect of any subsequent portion of the half-year during which the premises may again become occupied.

(4) Subject to the provisions of the last preceding subsection—

(a) where the Corporation commence to give a supply of water to any premises either for the first time or after a discontinuance of supply the then current instalment of the water rate shall become payable on the day on which notice requiring the supply is given to the Corporation or if no such notice is given on the day when they commence to give the supply; and

(b) the liability of a person to pay an instalment of a water rate shall not be affected by the fact that before the end of the period in respect of which the instalment became payable by him he or his tenant as the case may be removes from the premises in question or causes the supply of water thereto to be discontinued.

(5) Nothing in this section affects any right of the Corporation to make a minimum charge in respect of water rates.

Effect on
water rates of
alterations in
valuation list.

13.—(1) Where in consequence of a proposal under section thirty-seven of the Rating and Valuation Act 1925 an amendment is made in the valuation list for the time being in force the amendment shall for the purpose of calculating the amount due in respect of any water rate payable under the enactments relating to the Corporation have effect retrospectively as from the date when the proposal was made and notwithstanding anything in the last preceding section with respect to the equality of instalments of a water rate any necessary adjustments shall be made in the then current instalment of the rate and any subsequent instalments of rates.

(2) If it is found that by reason of the foregoing provision too much or too little has been paid in respect of any water rate the difference shall be repaid or allowed or as the case may be shall be paid and may be recovered in the manner in which water rates are recoverable.

Discount for
prompt pay-
ment of water
rates and
charges.

14.—(1) The Corporation may allow discounts or rebates in consideration of prompt payment of water rates and charges:

Provided that such discounts or rebates shall except in those cases where subsection (2) of section II of this Order is applicable be at the same rate under like circumstances to all persons and shall not in any case exceed five per cent.

(2) If and so long as the Corporation allow such discounts or rebates notice of the effect of this section shall be endorsed on every demand note for water rates and charges.

Recovery of
rates and
charges from
persons
removing.

15. If it is shown to the satisfaction of a justice of the peace on sworn information in writing that a person is quitting or is about to quit premises to which the Corporation supply water and has failed to pay on demand an instalment of a water rate or charge payable by and due from him in respect of those premises and intends to evade payment thereof by departing from the premises the justice may in addition to issuing a summons for non-payment of the sum due issue a warrant under his hand authorising the person named therein

forthwith to enter the premises and to seize sufficient goods and chattels of the defaulter to meet the claim of the Corporation and to detain them until the complaint is determined upon the return of the summons.

PART II.
—cont.
Caernarvon
Order.

16.—(1) Where the Corporation supply water by meter the register of the meter shall be prima facie evidence of the quantity of water consumed.

Register of
meter to be
evidence.

(2) Any question arising between the Corporation and a consumer with respect to the quantity of water consumed may on the application of either party be determined by a court of summary jurisdiction.

(3) If the meter on being tested is proved to register incorrectly to any material degree—

(a) the meter shall be deemed to have registered incorrectly to that degree since the last occasion but one before the date of the test on which a reading of the index of the meter was taken by the Corporation unless it is proved to have begun to register incorrectly on some later date; and

(b) the amount of any refund to be made to or of any extra payment to be made by the consumer shall be paid or allowed by the Corporation or paid by the consumer as the case may be and in the case of an extra payment shall be recoverable in the manner in which water rates are recoverable.

PART III.

PROVISIONS FOR PREVENTING WASTE &C. OF WATER AND AS TO METERS AND OTHER FITTINGS.

17.—(1) The Corporation may make byelaws for preventing waste undue consumption misuse or contamination of water supplied by them.

Byelaws for
preventing
waste misuse
or contamina-
tion of water
&c.

(2) Byelaws under this section may include provisions—

(a) prescribing the size nature materials strength and workmanship and the mode of arrangement connection disconnection alteration and repair of the water fittings to be used; and

(b) forbidding any arrangement and the use of any water fittings which cause or permit or are likely to cause or permit waste undue consumption misuse erroneous measurement or contamination of water or reverberation in pipes:

Provided that byelaws made for the purposes of paragraph (a) of this subsection shall not apply in relation to fittings used in connection with a supply of water by meter.

(3) If a person contravenes or fails to comply with the provisions of any byelaw made under this section the Corporation may without prejudice to their right to take proceedings for a fine in respect of such contravention or non-compliance cause any water fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws to be altered repaired or replaced and may recover the expenses reasonably incurred by them in so doing from the person in default summarily as a civil debt.

PART III.

—cont.
Caernarvon
Order.

(4) Nothing in this section or in any byelaw made thereunder shall apply to any fittings used on premises which belong to a railway company and are held or used by them for the purposes of their railway so long as those fittings do not cause waste undue consumption misuse or contamination of water supplied by the Corporation or reverberation in pipes.

Provided that the exemption conferred by this subsection shall not extend to fittings used in hotels or other houses or in offices not forming part of a railway station.

(5) The provisions of section sixty-three of the Public Health Act 1936 (which relates to the powers of a local authority with the consent of the Minister to relax the requirements of building byelaws) shall apply in relation to byelaws made by the Corporation under this section as they apply in relation to local authorities and building byelaws made by them.

(6) The Minister shall be the confirming authority as respects byelaws made under this section.

(7) If the Corporation propose to apply to the Minister for confirmation of byelaws made under this section they shall in addition to complying with any other statutory requirements—

(a) send at least one month before the application is made a copy of the byelaws to the local authority of every district in which any premises to which the byelaws will apply are situate;

(b) publish in the London Gazette at least one month before the application is made notice of their intention to apply for confirmation; and

(c) at the request of any person interested furnish to him a copy of the proposed byelaws upon payment of one shilling.

Paragraph (c) of this subsection shall in its application to the Corporation have effect in lieu of subsection (5) of section two hundred and fifty of the Local Government Act 1933.

In this subsection the expression "month" means a period of four weeks exclusive of any day in the month of August.

(8) Subject as hereinafter provided—

(a) any byelaw made by the Corporation under this section shall cease to have effect on the expiration of ten years from the date on which it was made; and

(b) any byelaw or regulation made by the Corporation under any other enactment which confers power to make byelaws or regulations for purposes similar to the purposes of this section shall if made more than nine years before the date of the commencement of this Order cease to have effect at the expiration of one year from that date and if made not more than nine years before that date cease to have effect at the expiration of ten years from the date on which it was made but save as aforesaid shall unless revoked by a byelaw made under this section continue to have effect and to be enforceable in the same manner as if this Order had not been made.

Provisional Order Confirmation (Caernarvon) Act, 1942.

Provided that the Minister may by order extend the period during which any such byelaw or regulation is to remain in force.

PART III.

—cont.

Caernarvon
Order.

18.—(1) The Corporation may require that—

(a) any building the supply of water to which need not under the enactments relating to the Corporation be constantly laid on under pressure; and

Power to
require
provision of
cisterns in
certain cases.

(b) any house the erection of which was not commenced before the coming into force of this section and to which water is required to be delivered at a height greater than thirty-five feet below the draw-off level of the service reservoir from which a supply of water is being or is to be furnished by them;

shall be provided with a cistern having a ball and stop-cock fitted on the pipe conveying water to it and in the case of such a house as is mentioned in paragraph (b) of this subsection may require that the cistern shall be capable of holding sufficient water to provide an adequate supply to the house for a period of twenty-four hours.

(2) If a consumer whom the Corporation have in accordance with the foregoing provisions required to provide a cistern fails to comply with the requirement or if a consumer fails to keep in good repair any cistern in use in his building or the ball and stop-cock appurtenant to that cistern the Corporation may themselves provide a cistern or execute any repairs necessary to prevent waste of water and may recover the expenses reasonably incurred by them in so doing summarily as a civil debt from the owner of the building but without prejudice to the rights and obligations as between themselves of the owner and the consumer.

19.—(1) The Corporation may at the request of a consumer supply to him by way either of sale or hire or repair or alter (but shall not manufacture) any such water fittings as are required or allowed by their byelaws and may provide any materials and do any work required in connection therewith:

Power to
supply water
fittings.

Subject to any agreement as to the price or rent for any fitting supplied the Corporation may make reasonable charges for any fitting supplied or any materials provided or work done under this subsection and may recover such charges summarily as civil debts.

(2) If any fittings let for hire by the Corporation bear either a distinguishing metal plate affixed thereto or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners of the fittings those fittings—

(a) shall notwithstanding that they be fixed to some part of the premises in which they are situate or be laid in the soil thereunder continue to be the property of and removeable by the Corporation; and

(b) shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or in any proceedings in bankruptcy against the persons in whose possession they may be:

PART III.

—cont.

Caernarvon
Order.

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(3) (a) The Corporation shall so adjust the charges to be made by them under this section as to meet any expenditure by them thereunder including interest upon any moneys borrowed for the purposes thereof and any sums carried to a sinking fund for repayment of moneys so borrowed; and

(b) The total sums expended and received by the Corporation in connection with the purposes of this section in each year including interest and any sums carried to a sinking fund shall be separately shown in the published accounts of the Corporation for that year.

Power to
test water
fittings.

20. The Corporation may test any water fittings used in connection with water supplied by them:

Provided that where water is supplied by meter to a factory or to premises which belong to a railway company and are held or used by them for the purposes of their railway the power of testing conferred by this section shall apply only in relation to a meter used by the Corporation for measuring the water supplied by them and to any water fittings between that meter and the main.

Power to
enter
premises to
detect waste
or misuse of
water.

21. An authorised officer of the Corporation may between the hour of seven in the forenoon and one hour after sunset on producing if required evidence of his authority enter any premises supplied with water by the Corporation otherwise than by meter in order to examine if there be any waste or misuse of such water and if after production of his authority he is refused admittance to the premises or is obstructed in making his examination the person refusing him admittance or so obstructing him shall be liable to a fine not exceeding ten pounds.

Power to
repair supply
pipes.

22.—(1) If the Corporation have reason to think that some injury to or defect in a supply pipe which they are not under obligation to maintain is causing or is likely to cause waste of water or injury to person or property they may execute such work as they think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the pipe is discovered the expenses reasonably incurred by the Corporation in discovering it and in executing repairs shall be recoverable by them summarily as a civil debt from the owner of the premises supplied but without prejudice to the rights and obligations as between themselves of the owner and the occupier of the premises.

(2) Where several houses in the occupation of different persons are supplied with water by one common supply pipe belonging to the owners or occupiers of the houses the amount of any such expenses as aforesaid reasonably incurred from time to time by the Corporation in the maintenance and repair of that pipe may be recovered by them summarily as a civil debt from those owners or occupiers in such proportions as in case of dispute may be settled by the court.

5. & 6 GEO. 6. *Ministry of Health* **Ch. viii.**
Provisional Order Confirmation (Caernarvon) Act, 1942.

23.—(1) If a consumer wilfully or negligently causes or suffers any water fitting which he is liable to maintain to—

- (a) be or remain so out of order or so in need of repair ; or
- (b) be or remain so constructed or adapted or be so used ;

that the water supplied to him by the Corporation is or is likely to be wasted misused or unduly consumed or contaminated before use, or that foul air or any impure matter is likely to return into any pipe belonging to or connected with a pipe belonging to the Corporation he shall be liable to a fine not exceeding five pounds.

(2) If any water fitting which a consumer is liable to maintain is in such a condition or so constructed or adapted as aforesaid the Corporation without prejudice to their right to institute proceedings under the preceding subsection may require the consumer to carry out any necessary repairs or alterations and if he fails to do so within forty-eight hours may themselves carry out the work and recover from him summarily as a civil debt the expenses reasonably incurred by them in so doing.

24.—(1) An owner or occupier of premises supplied with water by the Corporation who without their consent supplies any of that water to another person for use in other premises or wilfully permits another person to take any of that water for use in other premises shall be liable to a fine not exceeding five pounds unless that other person requires the water for the purpose of extinguishing a fire or is a person supplied with water by the Corporation but temporarily unable through no default of his own to obtain water.

(2) If a person not supplied with water by the Corporation wrongfully takes uses or diverts water from a reservoir watercourse conduit or pipe belonging to the Corporation or from a pipe leading to or from any such reservoir water course conduit or pipe or from a cistern or other receptacle containing water belonging to the Corporation or supplied by them for the use of a consumer of water from them he shall be liable to a fine not exceeding five pounds.

(3) Any person who having from the Corporation a supply of water otherwise than by meter uses any water so supplied to him for a purpose other than those for which he is entitled to use it shall be liable to a fine not exceeding forty shillings without prejudice to the right of the Corporation to recover from him the value of the water misused.

25.—(1) If any person wilfully or negligently injures or suffers to be injured any water fitting belonging to the Corporation or fraudulently alters the index of any meter used by them for measuring the water supplied by them or prevents any such meter from registering correctly the quantity of water supplied or fraudulently abstracts or uses water of the Corporation he shall without prejudice to any other right or remedy of the Corporation be liable to a fine not exceeding five pounds and the Corporation may do all such work as is necessary for repairing any injury done or for securing the proper working of the meter and may recover the expenses reasonably incurred by them in so doing from the offender summarily as a civil debt.

PART III.
—cont.
Caernarvon
Order.

Penalty for waste &c. of water by non-repair of water fittings.

Penalties for misuse of water.

Penalty for injuring water fittings &c. or for fraudulent use of water.

PART III.
—cont.
Caernarvon
Order.

(2) For the purposes of this section if it is proved that a consumer has altered the index of a meter it shall rest upon him to prove that he did not alter it fraudulently and the existence of any artificial means under the control of a consumer for preventing a meter from registering correctly or for enabling him fraudulently to abstract or use water shall be evidence that he has fraudulently prevented the meter from registering correctly or as the case may be has fraudulently abstracted or used water.

Penalty for
interference
with valves
and apparatus.

26. If any person either—

- (a) wilfully and without the consent of the Corporation; or
- (b) negligently;

turns on opens closes shuts off or otherwise interferes with any valve cock or other work or apparatus belonging to the Corporation and thereby causes the supply of water to be interfered with he shall be liable to a fine not exceeding five pounds and whether proceedings be taken against him in respect of his offence or not the Corporation may recover from him summarily as a civil debt the amount of any damage sustained by them:

Provided that this section shall not apply to a consumer closing the stop-cock fixed on the service pipe supplying his premises so long as he has obtained the consent of any other consumer whose supply will be affected thereby.

Penalty for
extension or
alteration
of pipes &c.

27.—(1) Any person who without the consent of the Corporation attaches any pipe or apparatus to a pipe belonging to the Corporation or to a supply pipe or makes any alteration in a supply pipe or in any apparatus attached to a supply pipe shall be liable to a fine not exceeding five pounds and any person who uses any pipe or apparatus which has been so attached or altered shall be liable to the same penalty unless he proves that he did not know and had no grounds for suspecting that it had been so attached or altered:

Provided that where water is supplied by meter to a factory or to premises which belong to a railway company and are held or used by them for the purposes of their undertaking this subsection shall apply only in relation to a pipe between the main and a meter used by the Corporation for measuring the water supplied by them.

(2) When an offence under this section has been committed then whether proceedings be taken against the offender in respect of his offence or not the Corporation may recover from him summarily as a civil debt the amount of any damage sustained by them and the value of any water wasted misused or improperly consumed.

Meters to be
connected or
disconnected
by
Corporation.

28.—(1) A consumer who has not obtained the consent of the Corporation shall not connect or disconnect any meter by means of which water supplied by the Corporation is intended to be or has been measured for the purposes of the payment to be made to them but if he requires such a meter to be connected or disconnected shall give to the Corporation not less than twenty-four hours' notice of his requirements and of the time when the work can be commenced and thereupon the Corporation shall carry out the necessary work and may recover from him summarily as a civil debt the expenses reasonably incurred by them in so doing.

(2) A consumer who contravenes any of the provisions of this section and the Corporation if they fail to carry out with all reasonable despatch any such work as aforesaid shall be liable to a fine not exceeding forty shillings.

PART III.
—cont.
Caernarvon
Order.

29. Subject to the provisions of the enactments relating to the Corporation with respect to the breaking open of streets the Corporation may for the purpose of measuring the quantity of water supplied or preventing and detecting waste affix and maintain meters and other apparatus on their mains and service pipes and may insert in any street but as near as is reasonably practicable to the boundary thereof the necessary covers or boxes for giving access and protection thereto and may for that purpose temporarily obstruct break open and interfere with streets tramways sewers pipes wires and apparatus :

Meters &c.
to measure
water or
detect waste.

Provided that the Corporation shall not under the powers of this section interfere with—

- (a) any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of that Act ; or
- (b) any works or apparatus of any electricity undertakers except in accordance with the provisions of section fifteen of the Electric Lighting Act 1882 or section seventeen of the Electric Lighting (Clauses) Act 1899 ; or
- (c) any pipes or apparatus of any gas undertakers except under the supervision (if given) of an authorised officer of those undertakers and in accordance with plans approved by them or by such officer or in case of any difference by a court of summary jurisdiction.

PART IV.

GENERAL AND MISCELLANEOUS.

30.—(1) The Corporation may supply water for purposes other than domestic on such terms and conditions as may be agreed with the consumer but except in so far as may be otherwise expressly agreed shall not be subject to any liability in respect of a failure to maintain such a supply if the failure is due to frost drought unavoidable accident or other unavoidable cause or the execution of necessary repairs or alterations.

Power to
supply water
for
non-domestic
purposes.

(2) Charges for water supplied under this section whether by meter or otherwise shall be recoverable in the manner in which water rates are recoverable.

(3) Section 25 of the Act of 1865 shall be altered by the omission therefrom of the words "by virtue of any such Agreement or otherwise".

31.—(1) The Minister on application to him by the Corporation or by twenty persons supplied with water by the Corporation may by order make such reduction or increase in the rates and charges which the Corporation are authorised to levy and make as he considers reasonable.

Power of
Minister to
revise water
rates and
water charges.

PART IV.
—cont.
Caernarvon
Order.

(2) Applicants for an order under this section shall publish once at least in each of two successive weeks in one or more local newspapers circulating within the limits of supply of the Corporation a notice explaining the effect of their proposals and stating that objections thereto may be made to the Minister within forty-two days exclusive of any day in the month of August after the first publication of the notice and shall also publish in the London Gazette a notice stating that they are about to apply for an order under this section naming the counties and county districts within which the Corporation are supplying water and giving the name and date of issue of a local newspaper in which the notice explaining the effect of the order applied for will be found.

(3) If before the expiration of the said forty-two days or before the expiration of thirty-nine days from the publication of the notice in the London Gazette an objection is received by the Minister from any person appearing to him to be affected by the application and is not withdrawn the Minister before making any order on the application shall cause a local inquiry to be held.

(4) The Minister may at any time upon the application either of the Corporation or of any body of consumers entitled to make an application under subsection (1) of this section make an order in like manner and subject to the like provisions as the original order amending any order previously made by him under this section.

Provided that unless he considers that exceptional circumstances exist he shall not make an amending order in pursuance of an application under this subsection before the expiration of five years from the date of his decision on the last preceding application.

(5) In relation to any period during which an order made under this section is in operation the enactments relating to the Corporation shall have effect as if the rates and charges specified in the order were substituted for the rates and charges specified in those enactments.

Power of
Minister to
authorise
Corporation
to supply
premises
outside their
limits of
supply.

32.—(1) If the Minister is satisfied that the owners or occupiers of premises in an area outside the limits of supply of the Corporation desire to obtain a supply of water from the Corporation and that the giving of the supply is not likely to interfere with the supply of water for any purposes within the said limits he may on the application of the Corporation and with the consent of the local authority within whose district and of any statutory water undertakers within whose limits of supply the area is situate by order authorise the Corporation to supply water in that area or such part thereof as may be so specified.

Provided that a consent required for the purposes of this subsection shall not be unreasonably withheld and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Minister.

(2) Where the Corporation are by virtue of an order made under the preceding subsection supplying water to premises outside their limits of supply any other statutory water undertakers supplying water under a local Act or Order within whose limits of supply those premises are situate or if there are no such other undertakers the local authority of the district in which the premises are situate may in the absence of

any agreement to the contrary at any time give not less than three months' notice to the Corporation that they are able and intend to give a supply of water to the premises in question.

PART IV.
—cont.
Caernarvon
Order.

(3) When a notice has been given under the last preceding subsection then so soon as after the expiration of three months the undertakers or authority giving the notice commence to supply water to the premises in question the Corporation shall except for the purpose of recovering water rates and water charges and of removing any pipes plant or apparatus which the undertakers or authority giving the notice do not require them to leave in position cease to have any rights or duties in respect of a supply to those premises but the undertakers or authority giving the notice shall pay to them such portion of any expenses reasonably incurred by them for the purpose of giving a supply to those premises as may be agreed or in default of agreement determined by an arbitrator appointed by the Minister.

(4) While the Corporation are by virtue of an order made under subsection (1) of this section authorised to supply water outside their limits of supply the enactments relating to their undertaking shall have effect as if the area specified in the order were within those limits.

33.—(1) Except in cases of emergency arising from defects in existing pipes plant or works the roadway or footpath of a street or bridge which is under the control or management of or maintainable by a railway company or navigation authority shall not be broken open without their consent but that consent shall not be unreasonably withheld and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Minister.

Protection
for railway
companies
navigation
authorities
tramway
undertakers
&c.

(2) Where the Corporation propose to break open the roadway or footpath of any length of street which forms a level crossing or crosses over or under a railway or other works of a railway company or navigation authority and which is not under the control or management of the railway company or navigation authority they shall give to the railway company or navigation authority not less than fourteen clear days' notice of their intentions and of the time when they propose to commence the work and if and in so far as the proposed work is likely to affect the structure of any bridge or other works belonging to the railway company or navigation authority shall carry out the work to the reasonable satisfaction of the engineer of the railway company or navigation authority in accordance with plans approved by him.

Any dispute arising under this subsection between the Corporation and a railway company or navigation authority shall be referred to an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers.

(3) Nothing contained in this section for the protection of owners of level crossings shall affect the decision of any question which may arise as to the legality of the construction of or the right to continue any level crossing.

34.—(1) The following sections of the Act of 1865 are hereby Repealed :—

Section 22 (Rates at which water is to be supplied for domestic purposes).

PART IV.
—cont.
Caernarvon
Order.

- Section 23 (Supply for other than domestic purposes).
Section 24 (Determination of agreement).
Section 28 (Regulations for preventing waste of water).
Section 29 (Extent of Regulations).
Section 30 (Cesser of Supply on breach of Regulations).
Section 31 (Repairs &c. by Board on failure of persons supplied).
Section 33 (Audit of Accounts).
Section 34 (Water Rate).
Section 51 (Forms in Public Health Act may be used).

(2) The following section of the Act of 1897 is hereby repealed :—
Section 66.

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and
King's Printer of Acts of Parliament

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(P. 820)